

80. Ethical Dilemmas Facing Nephrology · assets 1-4 / 4

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Box_80_1

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Box_80_2

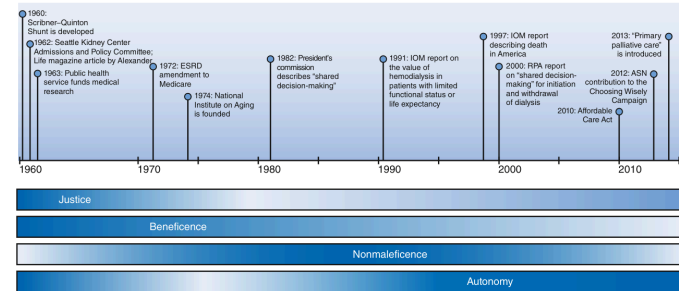


Fig. 80.1 Timeline of important events and publications related to the development of dialysis. Although there is significant overlap, the relative salience of each of the four principles varies over this course. *ASN*, American Society of Nephrology; *ESRD*, end-stage renal disease; *ION*, Institute of Medicine; *RPA*, Renal Physicians Association. (Used with permission of the American Society of Nephrology. Prior publication in the *Clinical Journal of the American Society of Nephrology*: Butler CR, Mehrotra R, Tonelli MR, Lam DY. The evolving ethics of dialysis in the United States: a principled bioethics approach. *Clin J Am Soc Nephrol*. 2016;11:704-709.)

Principle	Definition and Application	Example From the Kidney Allocation System
Utility	"Allocation should maximize the expected net amount of overall good."⁴ Maximizes graft survival, years of life added, and/or predicted quality-adjusted life years added.	<i>Longevity matching:</i> A score for patient estimated post-transplant utility (EPTS) and deceased donor kidney risk of graft failure (DDoG) donor profile index (KDPI) is used to pair patients who are expected to live the longest (top 20% EPTS) with kidneys expected to function for the longest duration (lowest 20% KDPI). This strategy intends to avoid "waste" of kidney years for people who may live with a kidney that would otherwise function for many more years and avoid needing to relist other people who outlive their donor kidney function.
Justice	Allocation should support "fairness in the pattern of distribution of the benefits and burdens of an organ procurement and allocation program."⁵ ... This does not mean treating all patients the same, but it does require giving equal respect and concern to each patient.⁶ Allocate donor organs equally across groups defined by social characteristics (e.g., socioeconomic status, race, ethnicity, gender, geography).⁷	<i>Retrospective waiting time credit:</i> Before the new kidney allocation system of 2014, patients began receiving "wait time credit" for the time they waited to receive a kidney. After 2014, patients accrue time from when they were first added to the waitlist (OR from the time that the related dialysis, whichever is longer. This change was intended to mitigate disparities in timely referral for transplant evaluation and waitlisting among socially disadvantaged groups.
Respect for persons	"We owe persons a respect that they should be treated as 'ends in themselves,' not merely as means. This principle embraces the moral requirements of honesty and fidelity in commitments made. Most importantly, respect for persons embraces the concept of respect for autonomy."⁸	The system should respect the rights of those who refuse to donate or receive organs. Allocation rules should be transparent such that individuals can make informed decisions about how and whether they engage in the process.

⁴Organ Procurement and Transplantation Network; OPTN/UNOS Ethics Committee White Paper, Ethical Principles to be Considered in the Allocation of Human Organs, <https://optn.transplant.hrsa.gov/resources/ethics/ethical-principles-in-the-allocation-of-human-organs/>; 2018.

Table_80_1

Fig_80_1